

School: Lyng C of E Primary

Date: 01/02/2022

Report: Remote consultation – Autumn & Spring Term Agenda

DPE: Linda Mortimer

School members: Maria Rudd, School Secretary

Consultation details

- DPE website/best practice including: staffing changes and updating on the DPE website
- Compliance (documents) and checklists
- Review of training and running reports
- Information security
- Electronic internal audit (making the rounds)
- Data Retention
- Supplier due diligence
- DPE Events and online workshops
- Record of processing (RoP) update and next steps

1. DPE website/best practice including staffing changes

Actions:

- Set up new staff on the DPE website and delete leavers: DPE dashboard>users>add staff, either manually or bulk import. Kalina at DPE (client support) is here to help you and can be contacted for support at: kalina.voyvodova@dataprotection.education.

2.Compliance documents and checklists

By now you should have all of your main updated compliance documents in place. Although the documents below are not all statutory to have on your website, for transparency and ease of managing these documents, it is good practice to have a GDPR section on your website and consider including the following documents:

Website documents:

- GDPR policy
- Privacy notice(s)
- SAR and data breach procedure
- FOI Policy

The school currently has a GDPR Policy on their website which is marked for review in March 2022. The document does include a section on Coronavirus. The school's Privacy Notice does not include any details about how they manage information that may be required by Public Health England or the NHS.

Action: If both these documents are to be reviewed in Spring 2022, DPE suggest using the latest model documents available on the website.

The Compliance Checklist – can be accessed via: (<https://dataprotection.education/index.php/best-practice-library/best-practice/commitment-to-compliance>) Once completed this can be used to manage progress, print off reports for Trustees/Governors and support consultants during visits/remote consultations.

Actions:

- Review the best practice checklists and update information. This can be used as a dashboard, reflecting the school's progress in GDPR and shared with Governors.
- **Work away from school policy - if not already it is good practice to have one.** School to ascertain which staff work from home, what data they access and how data is handled, which will support risk management for working out of school (policy available from the compliance best practice area).
- Please check you are happy that you now have all of the initial compliance documents i.e. **SAR procedure and data breach procedure.** Do all staff understand your organisation's data breach procedure? Review the DPE consent guidance and consent forms; does data displayed around school and on the website correlate with your current documentation? Is there data still displayed of leavers?

3. Review of training and running reports

Actions:

- Review when staff should complete their GDPR Refresher training (ICO recommend this should be completed on a 2 yearly basis). A 20-minute GDPR Refresher is available on Knowledge Bank.
- DPE recommend that the following training modules are completed:
Staying Safe Online
Password Security

4. Information security (phishing simulation) and e-learning training

There has been a significant increase in the number of cyber attacks and bogus emails received by Norfolk Schools. The ICO recognise that the education sector is now at the greatest risk from these threats and urge schools to remain vigilant, ensure that staff have raised awareness and can therefore reduce the risk of such threats.

DPE have a number of resources for information security: <https://dataprotection.education/best-practice-library/documents/information-technology-security>

If not already, staff should complete the **Stay Safe online NCSC training**. This is not only beneficial for the organisation but also for staff when accessing personal information online i.e. personal banking: <https://dataprotection.education/courses-heading/stay-safe-online-ncsc>

There is also an information classification best practice area: <https://dataprotection.education/index.php/best-practice-library/best-practice/information-classification>

And DPE will be releasing a phishing simulation shortly. Lindsey Smith, DPE Consultant, will help with the implementation of the phishing simulations.

Actions:

- As there have been some security concerns within the sector ask your IT provider to complete the cyber essentials questionnaire: <https://dataprotection.education/best-practice-library/documents/information-technology-security>
- Consider staff completing the DPE NCSC stay safe online training.

5. Electronic internal audit (making the rounds)

Demonstrated the online audit walk during the consultation.

Actions:

- The school has the option to complete their own end of day walk and report findings back to staff (raising awareness). A demonstration was provided at the time of the meeting.

6. Data retention

Organisations can set deadlines, document and justify timeframes they have set for retaining data. There are **two key factors**: the **purpose** for processing the data, and any **legal or regulatory requirements** for **retaining it**. One of your purposes will need to apply for you to continue to store the data. Data should not be held for longer than is needed. You shouldn't just keep data just in case you may need it in the future.

Different data systems to consider when reviewing data retention:

- Emails
- MIS
- Website
- Network/CLOUD

Tools to support you:

- There are a number of tools to support you with data retention: [IRMS](#) tool kit
- DPE's [record management](#) best practice area and records management policy
- [DfE](#) Annual review of school records and safe data destruction checklist
- [ICO](#)
- DPEs [Record of Processing \(RoP\)](#)
- Your third party list within your privacy notice
- Laws and regulations (for example, financial regulations and handbooks and limitations act: <https://www.legislation.gov.uk/ukpga/1980/58/legislation>: <https://www.legislation.gov.uk/ukxi/2021/833/contents/made>)

- [Microsoft retention tools](#)
- [Google retention tools](#)
- [MIS retention tools](#)
- Network scanning and retention tools - speak to your IT department

7. Supplier due diligence

The controller is responsible for assessing that any third party processors (suppliers etc) are competent to process personal data in line with the UK GDPR's requirements. This assessment should take into account the nature of the processing and the risks to the data subjects. This is because Article 28(1) says a controller must only use a processor that can provide "sufficient guarantees" (in particular in terms of its expert knowledge, resources and reliability) to implement appropriate technical and organisational measures to ensure the processing complies with the UK GDPR and protects the rights of individuals.

Things to consider:

- Privacy notice/third party/supplier list - is this up to date, do you know all the organisations/suppliers you share information with?
- Due diligence form - this can be sent to new suppliers
- Make sure that current and future contracts include data protection
- Risks - what you should be thinking of when purchasing and using new products and suppliers
- If using GDPRiS for maintaining suppliers, make sure that this is updated and accurate

DPEs best practice area and the due diligence form for suppliers is located here:

<https://dataprotection.education/index.php/best-practice-library/best-practice/due-diligence-best-practice-area>

8. DPE events and workshops

Check out the latest webinars and workshops from the My Activities section of the DPE website. The next workshop is a **data retention workshop** on the 10th February: <https://dataprotection.education/courses-heading/dpe-events>

Record of Processing (RoP) - and DPE methodology

We will continue to work with you and demonstrate how the RoP can be adapted to reflect your school's individual practice.

Step 1 - a general introduction to the RoP tool with a brief overview of the generic process relating to financial/management of the school.

Step 2 - a more in depth look at the RoP with key process owners and how completing the master lists will ensure the school reflects the technical measures and procedures it has in place to safeguard personal data took place on the 12.1.21.

Step 3 – online workshops and group sessions to support schools with further individual sessions as needed.

Note: a number of reporting functions are now available including a detailed retention schedule, which was demonstrated at the time of the meeting.

RoP Progress to date

The school has completed the tailoring all the Finance RoPs originally uploaded to the RoP Manager for Lyng Primary School. The school has made great progress with completing the HR RoPs and have only 5 remaining to review and mark as complete.

Further standard RoPs can be found under the Generic School and can be easily copied into the school's own RoP manager.